

26STCV14492 26STCV14492

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Case Number: 26STCV14492 Hearing Date: September 2, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
2, 2026

CASE NAME: Hee

Jung Kim v. Wilmington Trust, N.A., et al.

CASE NO.: 26STCV14492

DEMURRER

WITH MOTION TO STRIKE

MOVING PARTY: Defendants

Select Portfolio Servicing, Inc., Wilmington Trust, NA, successor Trustee to
Citibank, N.A., as Trustee for Bear Stearns Alt-A Trust 2006-4, Mortgage
Pass-Through Certificates, Series 2006-4, and National Default Servicing
Corporation

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. Demurrer

to the complaint for failing to join indispensable parties, res judicata,

Plaintiff is not the real party in interest concerning the Property, and failing to state sufficient facts to constitute a cause of action;

2. Motion

to strike various portions of the complaint pertaining to punitive damages and attorneys' fees.

TENTATIVE RULING:

1. Demurrer

to the complaint is SUSTAINED in full without leave to amend;

2. Motion

to strike is DENIED as moot.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 6, 2026, Plaintiff Jee Jung Kim (Plaintiff) filed a verified complaint against Defendants Wilmington Trust, N.A. (Wilmington), Selective Portfolio Servicing Corporation (SPS), and National Default Servicing Corporation (NDSC) (sometimes collectively Defendants) with three causes of action for: (1) wrongful foreclosure; (2) quiet title; and (3) temporary and permanent injunction.

Plaintiff alleges she defaulted on her longtime mortgage and was pursuing a short sale and had bankruptcy protection in place when Defendants nevertheless proceeded with a trustee's sale of her home on November 17, 2025 without proper notice. She contends the sale was wrongful because it occurred despite an active short-sale process and bankruptcy protections that should have halted foreclosure. After the sale, title was transferred to Wilmington, and Defendants have allegedly attempted to initiate eviction by serving or preparing to serve a ninety-day notice to vacate.

On June 16, 2026, Defendants filed the instant demurrer with motion to strike. Oppositions were due on or before August 20, 2026. As of August 26, 2026, the court has not received any oppositions.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, the parties met and conferred by telephone on June 9, 2026. (Declaration of Steven Dailey ¶ 2.) This requirement is therefore met.

Demurrer – Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving

to strike must appear on the face of the pleading or by way of judicial notice.

(Id. § 437.) “When the defect which

justifies striking a complaint is capable of cure, the court should allow leave to amend.” (Vaccaro v. Kaiman (1998)

63 Cal.App.4th 761, 768.)

ANALYSIS:

Request for

Judicial Notice

The court GRANTS Defendants’ request for judicial notice as

to Exhibits 5, 7, 8, 9, 10, 12, 13, and 17 [various Grant Deeds]. (Evid. Code § 452(d), (h); See Kalnoki v. First

American Trustee Servicing Solutions, LLC (2017) 8 Cal.App.5th 23,37.)

However, the court only takes judicial notice of the foregoing documents only

as to “the existence, content and authenticity of public records and other specified documents”; it does not take judicial notice of the truth of the

factual matters asserted in those documents. (Dominguez v. Bonta (2022) 87 Cal. App. 5th 389, 400.)

The court otherwise DENIES Defendants’ request for judicial

notice as superfluous to this ruling.

Demurrer

Standing: Property

Interest

Defendants contend Plaintiff lacks standing because she is

not the real party in interest due to having no legally protected interest in

the Property. In particular, she transferred 80% of the interest via a June 3,

2009 Grant Deed to several individuals and her remaining interest to A-Apple,

Inc. via Grant Deed on March 5, 2010. As a result, she is not the proper

plaintiff to bring these claims.

Plaintiff did not file an opposition.

“Every action must be prosecuted in the name of the real

party in interest, except as otherwise provided by statute.” (CCP § 367.)

A plaintiff bringing a wrongful foreclosure claim must allege facts “sufficient to establish a colorable claim” that they were “the owner of the property at the time of the foreclosure” (Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [noting a grant deed conveying “any and all interest” in the property to the plaintiff was sufficient for the pleadings stage.])

A plaintiff must also have a legal interest in the property to bring a claim for quiet title. (Chao Fu, Inc. v. Chen (2012) 206 Cal.App.4th 48, 59 [“It follows that absent an interest in the property, a party has no standing to ask the court to quiet title in the property or to obtain damages for the cloud on title.”])

Here, Plaintiff lacks standing. Notably, Plaintiff no longer has a legally protected property interest because she transferred all of her interest to others. First, she alleges she transferred title to an entity called Online Edugo. (Compl. ¶ 8.) Second, she seeks to quiet title to Online Edugo, Inc. (Compl. ¶ 17, and Prayer ¶ 4.) Third, Plaintiff deeded 10% shares (each) of her property interest to Zianglan Li, Yinghua Che, Dan Huang, Tae H. Kim, Hingran Piao, Jin hua Li, Jin yu Xu, and Ziangzi Jin via Grant Deed recorded on June 3, 2009. (RJN, Exhibit 5.) In other words, Plaintiff deeded away 80% of her interest in the Property and she retained 20% interest in the Property. (Ibid.) Then, Plaintiff transferred her remaining interest to A-Apple, Inc. via Grant Deed recorded on January 8, 2010.[1] (RJN, Exhibit 7.) In short, Plaintiff holds no legal interest in the property. She therefore lacks standing.[2]

Accordingly, the court SUSTAINS Defendants’ demurrer in full without leave to amend.[3]

Motion to Strike

In light of the ruling on the demurrer, the motion to strike is DENIED as moot.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the complaint is SUSTAINED in full without leave to amend;

2. Motion

to strike is DENIED as moot.

Pursuant to CCP § 581d,
this written order of dismissal constitutes a judgment and shall be effective
for all purposes. The Clerk shall note this judgment in the register of actions
in this case.ζ

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 2, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

What follows is a series of subsequent transfers of this interest. A-Apple, Inc. transferred their property interest via Grant Deed to Global Trustee on March 5, 2010. (RJN, Exhibit 8.) They, in turn, transferred their property interest via Grant Deed to Callmac Asset on April 27, 2010. (RJN, Exhibit 9.) Callmac Asset transferred to Boss Tec America via Grant Deed recorded on August 18, 2010. (RJN, Exhibit 10.) Boss Tec America transferred to SG Global and Chang Hwan Seo via Grant Deed on November 13, 2010. (RJN, Exhibit 12.) SG Global and Chang Hwan Seo transferred to Windsor Trust and Sin Il Pak via Grant Deed recorded on March 16, 2011. (RJN, Exhibit 13.) Windsor Trust and Sin Il Pak transferred to Il Woong Han via Grant Deed recorded on March 1, 2013. (RJN, Exhibit 17.)

[2]

Plaintiff did not file an opposition. The court interprets this as a concession that leave to amend is futile.

[3]

The court declines to address the remaining arguments concerning misjoinder, the bankruptcy case, and sufficiency of the allegations.